

§ 635. Petition to restore parental rights. A petition to modify a disposition ordered pursuant to subdivision (c) of section six hundred thirty-one of this article or paragraph (a) of subdivision three of section three hundred eighty-four-b of the social services law in order to restore parental rights may be filed in accordance with this part where the following conditions are met:

(a) the order committing guardianship and custody of the child had been issued two or more years prior to the date of filing of the petition under this section; and

(b) the order committing guardianship and custody of the child had been based upon an adjudication upon grounds enumerated in paragraph (b), (c) or (d) of subdivision four of section three hundred eighty-four-b of the social services law; and

(c) the petition alleges that the petitioner or petitioners and the respondent or respondents in the proceeding in which guardianship and custody had been committed consent to the relief requested in the petition or that the petitioner or petitioners withheld consent to the relief requested in the petition without good cause; and

(d) the child is fourteen years of age or older, remains under the jurisdiction of the family court, has not been adopted, does not have a permanency goal of adoption and consents to the relief requested in the petition.